

BEFORE THE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No RG PC DLMJG

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STIPULATION AND ORDER

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IN THE MATTER OF THE APPLICATION FOR A LICENSE TO PRACTICE  
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO  
OF VICTORIA SWAB,

Applicant,

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IT IS HEREBY STIPULATED and agreed by and between the Board of Licensed Professional Counselor Examiners ("Board") and Victoria Swab ("applicant"), as follows

1 The Board has jurisdiction over the person of applicant and the subject matter set forth in this stipulation and order

2 Ms Swab applied for a license to practice professional counseling in Colorado on August 8, 2000 Applicant has met the educational requirements for licensure, completed the required supervision and passed the licensure examination Therefore she is eligible for licensure as a Licensed Professional Counselor Applicant desires to obtain a license to practice professional counseling in Colorado

3 The Board authorized its legal counsel, the Colorado Attorney General, to prepare this Stipulation and Order with the intention that applicant be licensed to practice professional counseling in the State of Colorado under the terms of this Stipulation and Order

4 Applicant understands that she has the right to a hearing with respect to her application for a professional counseling license Applicant further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing on her license application, gives up her right to present oral and documentary evidence, and gives up her right to cross-examine witnesses Applicant understands that she has the right to appeal the Board's final order to the Court of Appeals Applicant further understands and agrees that, by voluntarily and knowingly entering into



this Stipulation and Order, she waives her right to appeal or otherwise contest the validity of the final Board Order entered pursuant to this stipulation

5 The Board orders that applicant be licensed as a Licensed Professional Counselor subject to probation for at least three years with the terms set forth in this Stipulation and Order. The Professional Counselor license is subject to applicant's continuation of her mental health treatment with her current therapist ("therapist"), continuation of her current medication treatment with her current medication treatment practitioner ("medical practitioner"), reporting to the Board by the therapist and medical practitioner ("mental health providers"), and restriction of her practice to working in an agency setting. During the period of probation applicant must comply with the terms of probation set forth in this Stipulation and Order in order to maintain her professional counselor's license and practice as a professional counselor.

6 The requirements of this Stipulation and Order are as follows:

a Applicant shall continue mental health treatment with her current therapist in accordance with the recommendations of the therapist. Should applicant change therapists she shall notify the Board and the new therapist shall provide treatment and reports to the Board the same as the current therapist.

b Applicant shall continue with her medication in accordance with the recommendation of her medical practitioner. Should applicant change medical practitioners she shall notify the Board and the new medical practitioner shall provide treatment and reports to the Board the same as the current medical practitioner.

c. Applicant's practice of professional counseling is restricted to working in an agency setting. Her agency supervisor shall have the responsibility to report to the Board if the supervisor is of the opinion that applicant is not practicing professional counseling in accordance with generally accepted standards of practice or with skill and safety for her clients. Any such report shall be made in writing within 48 hours of forming such opinion. Should the supervisor take any adverse employment action regarding applicant she/he shall report such action and the basis for the action to the Board. The supervisor shall send a copy of the report to the applicant when she sends the report to the Board. Applicant shall immediately cease the practice of professional counseling if such report is submitted to the Board.

d Applicant's mental health providers shall each report to the Board regarding applicant's ongoing mental health treatment. The mental health providers shall report to the Board in writing as to whether respondent is continuing with her mental health treatment in an appropriate manner and whether her mental and physical condition is such that she can treat clients with skill and safety and does not present any danger to the health or



safety of persons under her care. The first report from each mental health provider must contain a statement that the mental health provider has received a copy of this stipulation and order and the Board's file, has read these documents, and understands the responsibility she/he has under this order. The first report shall be submitted by the fifth day of the month following the sixth month after respondent's professional counseling license is issued. The mental health providers shall submit subsequent reports on the fifth day of each sixth month thereafter (i.e. on a semi-annual basis). This reporting requirement shall continue for at least three years.

d. If one of the mental health providers is of the opinion that applicant is not practicing professional counseling in accordance with generally accepted standards of practice or has a mental or physical condition which renders her unable to treat persons under her care with skill and safety, she/he shall report this opinion to the Board. Such report shall be made within 48 hours of forming such opinion. The mental health provider shall send a copy of the report to the applicant when she/he sends the report to the Board. Applicant shall immediately cease the practice of professional counseling if such a report is submitted to the Board.

d. Applicant, not the Board is responsible for all costs or expenses incurred for mental health treatment, reports from mental health providers, and any other actions necessary to fulfill the requirements of this Stipulation and Order.

e. Applicant shall take reasonable steps to assure that her mental health providers report to the Board as required by this Stipulation and Order.

f. Applicant agrees that she will provide or allow her mental health providers to provide medical or psychological records or information to the Board in the event one of the mental health providers determines that she is not practicing or capable of practicing professional counseling in accordance with generally accepted standards of practice or has a physical or mental condition which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care. As part of this Stipulation and Order applicant explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her mental health providers if one of the mental health providers determines that she is unable to practice professional counseling in accordance with generally accepted standards of practice or has a physical or mental condition which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care.

7. The Board will review the status of applicant prior to the end of the period of probation. The probation is subject to continuation, amendment, or revision if the Board, in



the reasonable exercise of its discretion, determines that such action is necessary to assure applicant's continued safe practice of professional counseling and public protection

8 All time periods stated in this stipulation and order run only while applicant is engaged in the practice of professional counseling in the state of Colorado in accordance with the terms of this stipulation and order, they are tolled and suspended at all other times

9 If applicant discontinues the practice of professional counseling in the state of Colorado at any time during the period of probation, she shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall inform the Board of the date she discontinued the practice of professional counseling and her address, if it has changed

10. In the event applicant resumes the practice of professional counseling in Colorado, she shall notify the Board in writing prior to resuming the practice of professional counseling in Colorado. Such notice shall include her address, the date on which she intends to resume practicing, and the agency where she will be practicing.

11 As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C R S § 12-43-601(5)

10 No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

11 Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees

12 Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties, the resolution of those issues will affect only the pertinent parts of the order, and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order

13 This Stipulation and Order shall take effect on acceptance and signature by the Board

14. This stipulation and order is a public record



  
VICTORIA SWAB  
Applicant

DATED. September 26, 2007

ACCEPTED, SIGNED, AND ORDERED this 26<sup>th</sup> day of September, 2001.

STATE BOARD OF LICENSED  
PROFESSIONAL COUNSELOR EXAMINERS

  
TOM GRAVES, M.A , LPC  
CHAIR



APPROVED AS TO FORM



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